

**\*TENTATIVE RULING:\***

On January 28, 2026, this motion was continued, *sua sponte*, to March 26, 2026 in Department 10 at 9:00 a.m. No appearance is required on February 4, 2026.

**Discovery Law & Motion**

**16. 9:01 AM CASE NUMBER: C23-00908**

**CASE NAME: ABDO NASSER VS. DOES 1 TO 50**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL ENTRY OF PROTECTIVE ORDER GOVERNING  
CONFIDENTIAL INFORMATION**

**FILED BY: MW CELL REIT 1 LLC**

**\*TENTATIVE RULING:\***

**Summary**

Defendant MW Cell REIT 1 LLC's ("MWC" or "Defendant") Motion to Compel Plaintiff Abdo Nasser ("Plaintiff") to Enter a Protective Order governing Confidential Information and for sanctions for fees and costs in the amount of \$12,080 is vacated and referred to a Discovery Referee forthwith as set forth herein.

**Background**

In the Second Amended Complaint filed on April 8, 2024, Plaintiff pursues this suit against T-Mobile USA, Inc., T-Mobile West, LLC ("T-Mobile Defendants") and MWC alleging two causes of action, including trespass and nuisance related to cellular phone transmission facilities and related appurtenances that are alleged to have been placed on Plaintiff's property. Plaintiff seeks damages, including loss of use, general damages, property damages, and loss of earning capacity.

Through this Motion, MWC seeks a protective order claiming to protect certain trade secrets, confidential information, and other documents it claims to be protected by the California Uniform Trade Secrets Act. MCW seeks to protect, among other things, the alleged lease agreements, the costs of the lease, and the terms and conditions contained therein. MWC mentions that its practice of entering the form of protective orders sought have been approved by other courts in other cases. After attempting to meet and confer with Plaintiff's Counsel to enter into a protective order, MWC claims that Plaintiff refused to enter into a protective order.

In his opposition, Plaintiff's counsel contends that Plaintiff does not seek trade secrets, but it interested in understanding how much money MWC making by wrongfully leasing, occupying or using his real property. Plaintiff further argues that MWC did not prove the existence of a trade secret and waived its right to a protective order. The T-Mobile Defendants filed a statement of non-opposition to MWC's motion.

**Past Admonitions**

On July 31, 2025, at the hearing of a discovery motion initiated by Plaintiff, this Court has already found that both Parties, through Counsel, have acted improperly and have engaged in a misuse of the discovery process. The Court found that Plaintiff's counsel had clearly failed to meet and confer prior

to bringing an earlier motion to compel responses to discovery responses. The Court had also found that MWC has committed sanctionable conduct by making unsubstantiated boilerplate objections to every form interrogatory and each request for production, without providing substantive responses.

In denying Plaintiff's Motion to Compel Discovery, the Court found that the actions by both Counsel constitute a misuse of the Discovery Act and amounted to bad faith. The Court warned that future violations will not be tolerated by this Court. Counsels were admonished, then, that should this behavior continue in this case, the Court places the Parties on notice that sanctions may be imposed, *sua sponte*, by the Court. [See Order, July 31, 2025]. The Court also placed parties on notice that it may require the Parties to retain a Discovery Referee for all future discovery motions, given their improper conduct. The Court now revisits the apparent need for a Discovery Referee.

### **Analyses**

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. Cal. Code of Civ. Proc. Section 639(a)(5) states: "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

Applied here, the Court finds that a discovery referee is necessary to hear and determine this and all future discovery disputes in this case. The Court makes this finding on the grounds that Counsel have previously engaged in a misuse of the discovery process in a past motion. The Court also finds that MWC and Plaintiff have a remarkable history of difficulty in cooperating with each other, and the Parties regularly display an inability to resolve matters informally without court intervention. The Court finds that the existing disputes raised by MWC's motion and the nature of acrimony underlying this litigation require discovery reference. After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

## **Ruling**

**Discovery Referee is appointed.** The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Motion for Protective Order scheduled for hearing on February 4, 2026, and any and all subsequently filed discovery motions involving all Parties, including the T-Mobile Defendants. The hearing of MWC's Motion scheduled for February 4, 2026 is **vacated** from Department 16's calendar and is referred for further hearing to the Discovery Referee. All future discovery motions shall be filed with and heard directly by the Discovery Referee upon appointment.
2. By no later than February 10, 2026, Counsel for the Parties, including the T-Mobile Defendants, are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to be appointed to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by February 10, 2026 the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to [dept16@contracosta.courts.ca.gov](mailto:dept16@contracosta.courts.ca.gov) by Friday, February 13, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 33.33% between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to this discovery motion between MWC and Plaintiff.
4. MWC's Counsel is directed to prepare and e-file a proposed order for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by all Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment. The Discovery Referee shall be also be provided with a copy of this order, and the order of the Court dated July 31, 2025.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for February 4, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.